

Tentative Rulings and Resolution Review Hearings

June 2, 2025

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

BANGHART VS. REDDING APPLIANCE CENTER, ET AL.

Case Number: 24CV-0204133

Tentative Ruling on Motion to Compel Further Supplemental Requests for Production and to Compel the Resumption of the Deposition of Joe Heslin: Plaintiff Travis Banghart moves to compel further production from Defendant Joseph Heslin and to resume the deposition of Joseph Heslin. Defendant opposes the motion.

Meet and Confer. Plaintiff has provided evidence of sufficient efforts to meet and confer prior to filing the motion.

Merits. Defendant Heslin was deposed on March 12, 2025. The Deposition Notice included nine separate requests for production. Defendant provided objections and responded to each, either indicating that all responsive nonprivileged documents, if any, would be produced or that that he could not produce responsive documents as he was unaware of any that exist. Three documents were produced prior to the deposition. During the deposition, Mr. Heslin testified multiple times that he did not search for the requested records. Following meet and confer efforts, Plaintiff brought this motion.

(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.

CCP § 2025.480.

The Declaration of Joseph Heslin was filed with the Opposition. Defendant declared that he tasked Mario Callegari with obtaining cellular phone records in the fall of 2024. Many months ago, Defendant provided his attorney with his cellular phone to search for text messages and emails. One text message was found. Plaintiff argues that Defendant Heslin is included in emails produced elsewhere in the case and that this therefore means that Defendant Heslin has withheld relevant records. The Court does not agree. Being included in an email chain does not mean that Defendant Heslin is still has possession of the emails or had possession of them when this case was filed. The Court notes that the Complaint was filed nearly two years after Plaintiff worked at Redding Appliance Center. Plaintiff has failed to show that Defendant Heslin failed to comply with the Deposition Notice

or that he is withholding any responsive documents. Further, plaintiff has provided no authority that a party cannot engage in the assistance of others, including his attorney, to search for relevant records.

Sanctions. Given the Court's ruling, monetary sanctions will not be awarded.

The motion is **DENIED**. Plaintiff has submitted a proposed order that will be modified to reflect the Court's ruling.

IN RE: BOLLINGER

Case Number: 25CV-0206985

Tentative Ruling on Petition for Change of Name: Petitioner Stephanie Lynn Bollinger, AKA Stephanie Lynn Lowdermilk and Stephanie Lynn Zeccardi, seeks to change her name to Stephanie Lynn Bollinger. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Court notes Petitioner has indicated she is under the jurisdiction of the CDCR or in county jail. Based upon the criminal history check performed by the Court, this statement appears to be in error. However, further clarification is needed. Upon sufficient clarification regarding the statement, the Court intends to grant the Petition. **An appearance is necessary on today's calendar.**

CAPITAL ONE, N.A, VS. SANCHEZ

Case Number: 24CVG-00905

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Per CCP § 664.6: Capital One, N.A. seeks to vacate the dismissal entered on November 15, 2024, and enforce the Stipulation Agreement filed on November 14, 2024. Although the motion was timely noticed, Defendant Athena A. Sanchez did not file an opposition.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Stipulation Agreement filed with the Court on November 14, 2024. This request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing, or orally before the Court. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The parties stipulated to settlement in November 2024. The agreement provides that Defendant agreed to pay Plaintiff \$151.00 by August 30, 2024, followed by a minimum of \$151.00 by the 26th day of each month, commencing in September 2024. In the event of a default, Defendant is to pay \$4,508.90, plus costs. Dismissal was entered on November 15, 2024. The Declaration of Alexander Balzer Carr establishes that the last payment was received on October 10, 2024. Defendant has paid \$302.00. The balance now due is \$4,206.90 plus costs in the sum of \$603.61 for a total requested judgment of \$4,810.51. A memorandum of costs has been filed. Plaintiff has presented sufficient evidence that Defendant is in default of the Stipulated Agreement.

The motion is **GRANTED**. The dismissal is set aside. Judgment will be entered in the amount of \$4,810.51. Plaintiff provided a proposed Order and Judgment that will be executed by the Court.

IN RE: CHAPMAN

Case Number: 25CV-0207106

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Tiffany Chapman seeks to change the name of her minor child, Zachary Rian Sharette Hunt, to Zachary Rian Chapman. All procedural requirements of CCP § 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.